

# TGA Provisional Approval COVID-19 Vaccine Safety Records

An Evidence-Based Review of Australia's COVID-19  
Vaccine Safety Regulatory Oversight

January 2026



## THE PROBLEM

The TGA published a comprehensive COVID-19 Vaccine Safety Monitoring Plan in **February 2021**. Nearly four years later, it admits it **never systematically tracked whether this monitoring was actually done**.

4

Years of FOI battles  
Two separate FOI requests  
and OAI processes

~4,000

Pages TGA admits exist but  
refuses to release (FOI 25-  
0166)

3

Section 24AB consultations  
and multiple exchanges  
(Sept 2022 – May 2025)

1,426+ Days\*

FOI refused despite  
consultations

\*As at 14 January 2026, cumulative duration across initial citizen email request made on 18 February 2022 for basic safety implementation data and FOI 3643, OAI MR22/00538 and FOI 25-0166, OAI MR25/01153 processes

# ✓ WHAT TGA CAN DO

**September 2024**

Reporting to Information Commissioner (MR22/00538)

- **Systematically classify** hundreds of documents by type (SOPs, protocols, workflows, electronic briefings)
- **Create detailed tables** organising documents (pages 7-17)
- **Demonstrate sophisticated** document management capability using 12 document categories

# X WHAT TGA CLAIMS IT CAN'T DO

**June 2025**

Responding to citizen FOI request (FOI 25-0166)

- Use **the same classifications** (claims they're "too subjective")
- **Identify documents** related to safety plan objectives
- Admit documents were **never systematically tracked**

*"these have not been previously identified or related to that objective and would therefore require subjective interpretation."*

Source: FOI 25-0166 Decision, June 2025

## Section 24AB Consultation Details:

- After two section 24AB consultations, we narrowed our scope to just 30 documents.
- TGA calculated burden on 399 documents - a 13x scope inflation beyond what was actually requested or just 7.5% of total documents discovered.

### FOI 25-0166 had two parts:

**Point 1:** Find 5 documents **by their specific names** (listed in the Safety Plan)

→ TGA Decision:  **Accepted** - "clear and reasonable"

**Point 2:** Find 30 documents **by document type and objective** (using TGA's own classifications from September 2024)

→ TGA Decision:  **Refused** - "too subjective," "would unreasonably divert resources"

## Section 24AB Consultation Details cont.

### Both parts used:

- ✓ Same timeframe (Feb 2021 - Feb 2025)
- ✓ Same selection method (most recent versions)
- ✓ Same document categories (TGA's own classifications from Sep 2024 OAIC)
- ✓ Same scope (Safety Plan related)

**If the exact same criteria are clear enough for 5 documents, why aren't they clear enough for 30?**

# ≠ THE TIMELINE OF CONTRADICTIONS ≠

**FEB 2022**

Records don't exist  
(FOI 3643)

**JUL 2022**

"Ample documentation"  
(OAIC submission)  
(MR22/00538)

**SEP 2024**

Demonstrates capability  
(MR22/00538)

**JUN 2025**

TGA refuses. Claims FOI  
"subjective"  
(FOI 25-0166)

**OCT 2025**

"There would be some difficulty"  
in producing documents (Dr  
Dascombe)

"Very happy" to receive FOI  
(Prof. Lawler) as TGA  
simultaneously defends refusal

From an internal TGA email in the same submission:  
*"We would of course have ample documents demonstrating  
things we have done that correspond to each of the  
objectives of the plan"* — Elspeth Kay, Assistant Secretary,  
Pharmacovigilance Branch, 23 Feb 2022

9 October 2025: When Senator Alex Antic specifically questioned TGA officials about the COVID-19 Vaccine Safety Monitoring Plan, asking whether it was used and whether documents were collected, Professor Lawler responded: "very happy to receive any requests for freedom of information" while Dr Dascombe confirmed "high volume" of documents exist relating to "day-to-day processes" (Senate Community Affairs Legislation Committee, 9 October 2025)

# TGA'S PATTERN OF BEHAVIOUR

**DENIAL** → **ADMISSION** → **ENCOURAGEMENT** → **REFUSAL**

## DENIAL

*February 2022*

*"Documents do not exist"*

## ADMISSION

*July 2022 - September 2024*

*MR22/00538: "Ample documentation" exists and asked to make new FOI request*

## ENCOURAGEMENT

*Senate Estimates Community Affairs Legislation Committee, October 2025*

*"Very happy to receive requests for Freedom of Information"*

## REFUSAL

*June 2025*

*FOI 25-0166: Request "too subjective", despite using TGA's own classification system and limiting scope to just 30 documents*



# Dr. Dascombe's Senate Testimony: The Admission

- Day-to-day processes” and “standard sort of process” — Provisional approval requires enhanced monitoring BEYOND routine surveillance.
- If monitoring was ‘standard,’ **were provisional approval conditions legally met?**
- **Documents were never systematically tracked.** Admission of “some difficulty” because documents “relate to day-to-day work” confirms no tracking by Safety Plan objectives occurred.

Senate Community Affairs Legislation Committee, 9 October 2025

TGA investigated 148 safety signals and took 57 regulatory actions (Senate Oct 2025). Dr. Dascombe's characterisation of this work as 'day-to-day processes' contradicts provisional approval requirements for enhanced monitoring. No documentation links specific signals to specific regulatory actions or explains disposition of remaining signals. Without systematic implementation tracking, enhanced monitoring cannot be verified.



## WHY THIS MATTERS

### **Breach of Provisional Approval Framework**

Provisional approval legally requires enhanced monitoring beyond routine surveillance. Dr Dascombe's characterisation of monitoring as "day-to-day processes" and "standard sort of process" is fundamentally inconsistent with these requirements, raising serious questions about whether provisional approval conditions were actually met.

### **Accountability Failure**

The TGA made a public commitment to robust safety oversight but now admits it "never systematically tracked" implementation, creating a verifiable gap between promise and practice.

### **A Two-Tiered Transparency System**

The TGA demonstrates sophisticated document retrieval for the Information Commissioner but claims the same task is "too subjective" for a citizen, applying one standard for regulators and another for the public.

# A SIMPLE ANALOGY



Imagine a hospital after a serious infection outbreak.

After an investigation, they develop and publish a detailed infection control plan to prevent future outbreaks.

Four years later, when asked for records proving the plan was implemented, hospital leadership responds:

*"Infection control is part of hospital day-to-day processes now. We don't track or monitor it separately".*

**Would you accept that answer?**

**Of course not** - because:

Enhanced protocols exist to be verified

"Day-to-day" contradicts "enhanced plan"



Without separate tracking and reporting, the hospital can't prove compliance

# THE CRITICAL QUESTION

TGA reports that it has investigated 148 COVID-19 vaccine safety signals and taken 57 regulatory or consumer information actions.

However, it has not published:

- Documentation linking individual safety signals to specific regulatory or consumer information actions
- The investigation protocols actually applied to each signal
- The decision-making criteria used to determine actions or “no action” outcomes
- A signal-by-signal audit trail consistent with international pharmacovigilance standards adopted by TGA (ICH E2E) and internationally recognised best practice (CIOMS)

# THE CRITICAL QUESTION

If enhanced monitoring was conducted as legally required for provisionally approved products, why can't TGA produce consolidated documentation after four years?

- Monitoring was not conducted as a structured, documented program aligned to the published plan, or
- Records are so fragmented or poorly managed that they cannot be retrieved and presented, or
- Implementation and verification documents were never consolidated to demonstrate compliance with provisional approval conditions and records-management obligations.

**Conclusion: ➡ Every possible explanation reveals a regulatory failure**

# THIS ISN'T AN ADMINISTRATIVE PROBLEM.

## IT'S A TRANSPARENCY PROBLEM!

How can the same agency use document classifications systematically when reporting to the Information Commissioner, but claim those same classifications are "too subjective" for a citizen's FOI request?



**The TGA has provided no explanation**





# STATUTORY OBLIGATIONS POTENTIALLY BREACHED

## Freedom of Information Act 1982

Documents claimed 'do not exist' then 'ample documentation' acknowledged. 1,133-day delay for FOI 3643 including OAIC review (MR22/00538) far exceeds statutory timeframes

## Therapeutic Goods Act 1989

Unable to provide documentation demonstrating how provisional approval conditions requiring enhanced pharmacovigilance were implemented

## International Pharmacovigilance Standards

Failed to locate ICH E2E, WHO/ICMRA collaboration records. Assessed objectives "in isolation rather than examining the system holistically"

## Public Governance, Performance and Accountability Act 2013

Unable to systematically verify Safety Monitoring Plan implementation raises concerns about risk oversight and performance record duties

## Archives Act 1983

Systematic absence of implementation records indicates either: (a) never created = records management failure, or (b) created then destroyed = Archives Act s24(1) breach.



# THE KEY CONTRADICTION

**Senator Antic:** “Can you produce documents showing Safety Plan implementation?”

**Dr Dascombe (9 Oct 2025):** "There would be some difficulty in doing that... the five key themes... essentially describe our day-to-day processes... vast volume of documents relate to our day-to-day work."

But in July 2022, TGA officially submitted to the OAIC an email from Elspeth Kay, Assistant Secretary, Pharmacovigilance Branch (Attachment B, p.5, MR22/00538) 23 Feb 2022 stating:

*“We would of course have ample documents demonstrating things we have done that correspond to each of the objectives of the plan”.*





# THE DOCUMENTATION PROBLEM

- Kay (2022): "Of course" have documents by objective
- TGA presented this as official evidence to OAIC
- Dascombe (2025): "Some difficulty" producing same documents
- Monitoring was "day-to-day" work - not systematically tracked by Plan objective
- "Vast volume" exists but "difficulty" retrieving it
- Documents "never previously identified" by objective (TGA admission, June 2025)

After 4 years: The TGA still can't provide consolidated documentation for enhanced safety plan implementation for the biggest vaccine rollout in Australian history



# THE UNDERLYING PROBLEM: A SYSTEM FAILURE?

## Potential issues:

Dr. Dascombe's senate testimony and Kay's FOI responses raises fundamental questions about TGA's provisional approval compliance and its:

- **Information systems** - Lack capability to track by safety plan objective?
- **Resourcing** - Insufficient capacity for systematic documentation?
- **Organisational processes** - Disconnect between what was known in 2022 (Kay: documents "of course" exist) and what can be delivered in 2025 (Dascombe: "some difficulty")

## The key question for investigation: how do you verify what you don't monitor?

- Does the TGA have adequate systems, resources, and organisational capability to verify provisional approval monitoring?

**This potentially affects all provisional approvals - not just COVID-19 vaccines**

# THE CORE REGULATORY ISSUE

Monitoring was "day-to-day" and "standard"

1  
D

It was NOT "enhanced"

1  
E

Provisional approval conditions were NOT met

1  
P

**Regulatory basis for approval is QUESTIONABLE**

1  
L

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**68.4 million doses\***

administered under conditions that may not have been satisfied

Source: TGA senior official testimony, Senate Community Affairs Legislation Committee, 9 October 2025

\*Australian Immunisation Register data as at 26 July 2023



# CURRENT STATUS

## Legal and Regulatory Analysis

September 2024 OAIC submission proves contradiction

## Information Commissioner Review

MR25/01153 - Evidence submitted October 2025

## Senate Community Affairs Legislation Committee

Senate hearing 9 October 2025

## Commonwealth Ombudsman

Complaint lodged April 2025 (awaiting formal commencement)

Matter: MR25/01153 (FOI 25-0166)

Key Evidence: TGA OAIC Submission MR22/00538 (24 September 2024) | FOI 25-0166 Decision (3 June 2025)



# RESEARCH METHODOLOGY

## Four-Year Evidence-Based Investigation (2022-2025)

### FOI Requests

Two separate requests (FOI 3643, FOI 25-0166) iteratively refined using TGA's own document classification systems

### OAIC Reviews

Two OAIC reviews (MR22/00538, MR25/01153). TGA admits holding 399 documents (3,926 pages) in 12 categories but refuses release (FOI 25-0166)

### Comprehensive Document and Data Analysis

Analysis of TGA administrative responses, document categories, and classification systems revealing contradictory practices, statements made by executive officers and systemic recording failures

### Cross-Referencing

Systematic comparison of TGA public statements, FOI responses, OAIC submissions, and parliamentary testimony

### Statutory Analysis

Analysis of obligations under TGA Act 1989, PGPA Act 2013, FOI Act 1982, and pharmacovigilance standards

### Parliamentary Evidence

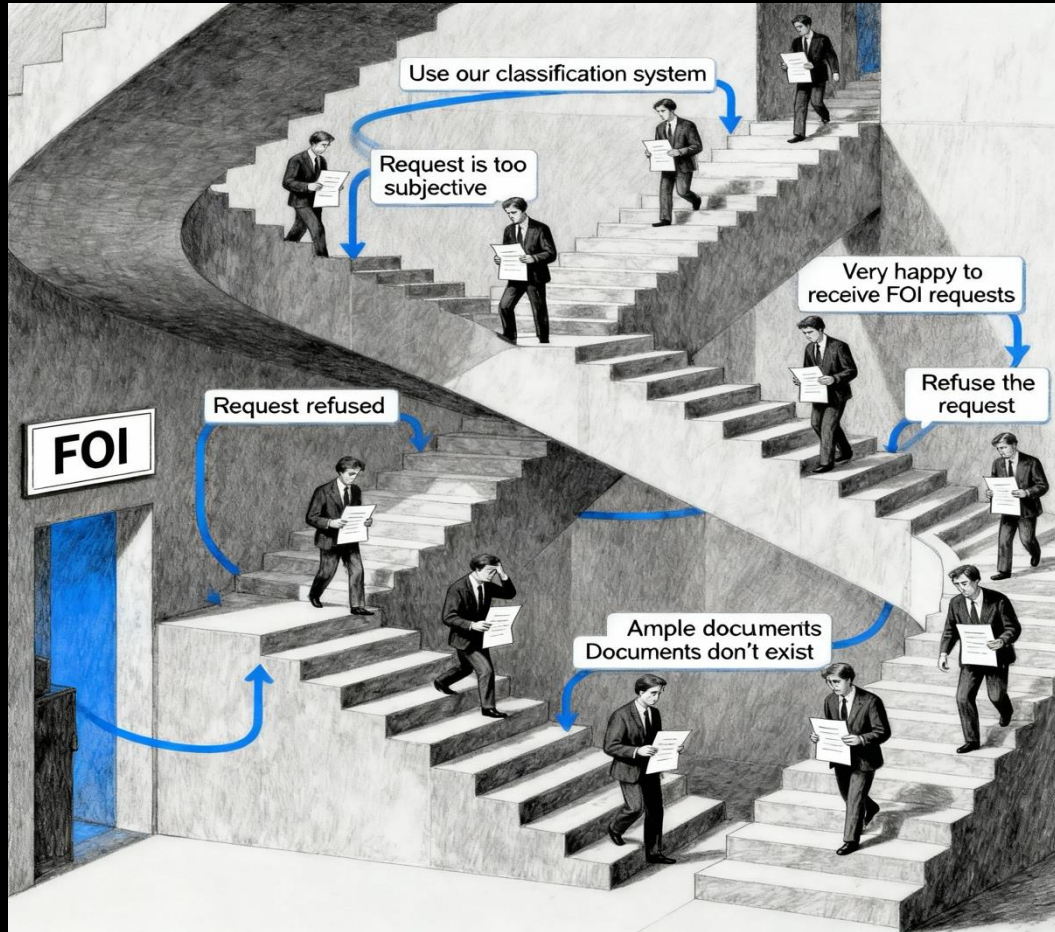
Integration of Senate Community Affairs Legislation Committee testimony (9 October 2025) demonstrating real-time contradictions

**Independent Review:** Research reviewed by medical doctor and medical research scientist with expertise in health policy and regulatory transparency

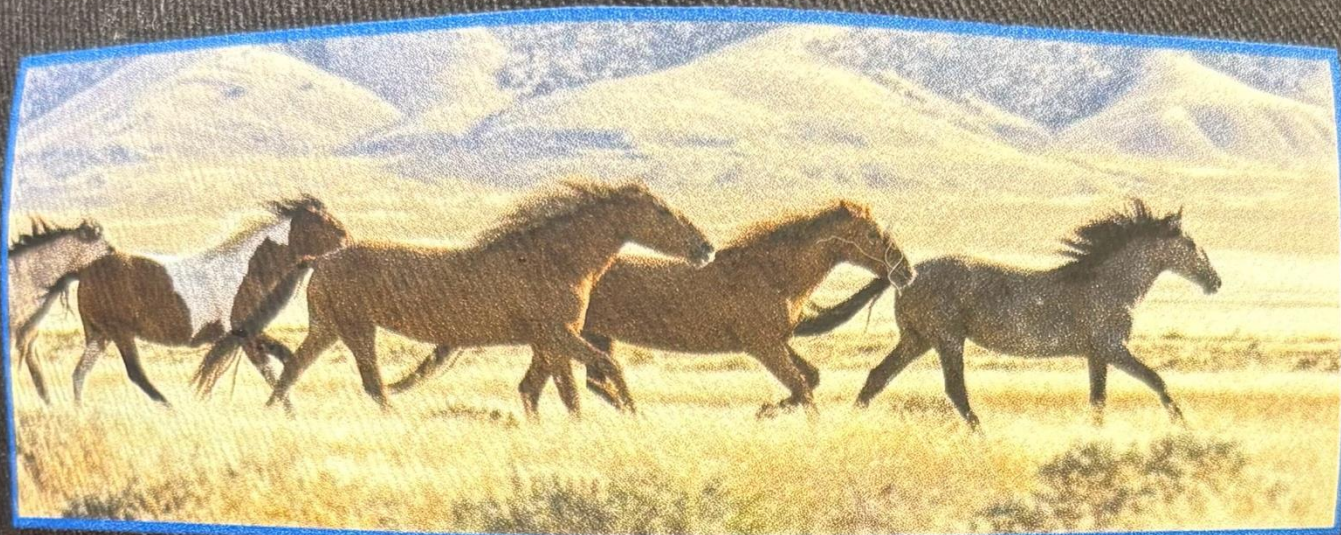
*This multi-layered approach combines legal recourse, administrative challenge, and comprehensive analysis to establish patterns of dysfunction affecting Australia's medicines regulator.*

"A true democracy is a place of many voices, including discordant voices."  
— Justice Michael Kirby

# FOI Stairs: 1,400+ days to no where







**HOPE YOU'RE WELL**